

attracts the jurisdiction of the Court, and the trustees would not be justified in proceeding to a sale without the Court's

*Johns. Ch. 368.* It would be a breach of trust to insist upon a sale at an inopportune time; *Johnston v. Eason*, 3 Ired. Eq. 330; *Hunt v. Bass*, 2 Dev. Eq. 297; a trust to sell within a certain time does not invalidate a title given after that time has elapsed; *Smith v. Kinney*, 33 Tex. 283; unless time is of the essence of the power; *Booraem v. Wells*, 4 C. E. Green Ch. 87; in which case the trustee would be responsible for any loss incurred thereby; *Isham v. Delaware, &c., R. R. Co.* 3 Stock, 227; trustees may make no distinction between timber and minerals; *Cadwalader's App.* 64 Pa. St. 293; several parcels may be sold in one lot; *Kellogg v. Carrico*, 47 Mo. 157; *Quidnick Co. v. Chafee*, 13 R. I. 367; *Tatum v. Holliday*, 59 Mo. 422; *Benkendorf v. Vincenz*, 52 Mo. 441; or one parcel sold in several lots; *Miller v. Evans*, 35 Mo. 45; *Gillespie v. Smith*, 29 Ill. 472; *Sumrall v. Chaffin*, 48 Mo. 402; *Stall v. Macalester*, 9 Ohio, 19; the object in selling is ordinarily to make a better investment elsewhere; *Wormley v. Wormley*, 8 Wheat. 421; and the trustee must not be influenced by any personal or selfish motive.

A trustee cannot delegate the power; *Hawley v. James*, 5 Paige, 487; *Black v. Erwin*, Harp. L. 411; *Cushman v. Stone*, 69 Ill. 516; except as to mere ministerial matters; *Graham v. King*, 50 Mo. 22; *Howard v. Thornton*, 50 Mo. 291; *Bales v. Perry*, 51 Mo. 449; and the trustee should be present during the sale; *Brickenkamp v. Rees*, 69 Mo. 426; and also the property; *Hannah v. Carrington*, 18 Ark. 85. A sale though not for money may be valid; *Speigle v. Meredith*, 4 Biss. 120; and neglect to take security will not avoid it; *Yaryan v. Shriner*, 26 Ind. 304. A sale by an agent, except ministerially, is void; *Pearson v. Jamison*, 1 McLean, 197. Trustees should all join in the appointment of an agent; *Sinclair v. Jackson*, 8 Cow. 582; all deeds should be executed by them, not by attorney; *Cranston v. Crane*, 97 Mass. 459; *Hawley v. James*, 5 Paige, 487; the husband need not join in deed of wife, who is holder of the power; *Cranston v. Crane*, 97 Mass. 459. Trustees for creditors may convey by attorney; *Blight v. Schenck*, 10 Barr, 285; but the powers of those holding a fiduciary relation are regulated largely by local statutes.

A sale may be private if it seems more advantageous; *Jackson v. Williams*, 50 Ga. 553; *Crane v. Reeder*, 22 Mich. 339; *Ashurst v. Ashurst*, 13 Ala. 781; *Shacklett v. Ransom*, 54 Ga. 350; unless the power requires an action; *Greenleaf v. Queen*, 1 Pet. 145; but this requirement may be waived if it is for any reason impracticable; *Gibbs v. Cunningham*, 1 Md. Ch. 44; *Tyson v. Mickle*, 2 Gill, 383. A private sale may be without notice; *Minuse v. Cox*, 5 Johns. Ch. 441; a bid by letter at an auction is valid; *Tyree v. Williams*, 3 Bibb, 367. A bid made by mistake may be waived, even if the sale is for less; *Waterman v. Spaulding*, 51 Ill. 425; so a bid may be rejected, if deemed advisable; *Gray v. Veirs*, 33 Md. 18. An auction sale is most desirable, if *bona fide*; *Shine v. Hill*, 23 Ia. 264; while there is always some risk attending private sales; *Johnson v. Dorsey*, 7 Gill, 269; and they will be set aside on slight provocation; *Penny v. Cook*, 19 Ia. 538.

An advertised sale may be adjourned; *Richards v. Holmes*, 18 How. 143; *Bennett v. Brundage*, 8 Minn. 432; but see *Griffin v. Marine Co.* 52 Ill. 130; in case of failure to sell, the property must be readvertised, as a sale on the same day would be improper; *Judge v. Booge*, 47 Mo. 544; trustees must show that power was complied with; *Hahn v. Pindell*, 1 Bush, 538; *Gibson v.*